

		proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (<i>See Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) At the same time, “for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court’s denial of leave to amend constitutes an abuse of discretion unless the complaint ‘shows on its face that it is incapable of amendment.’” (<i>Eghtesad v. State Farm General Insurance Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 [“Only rarely should a demurrer to an initial complaint be sustained without leave to amend.”].) Although Plaintiff has not sought leave to amend, the demurrer is asserted against the original Complaint, so that Plaintiff has not had a prior opportunity to amend in response to a challenge by the Defendants. Thus, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court’s ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (<i>See Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 [“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) Defendants shall give notice of this ruling.
5	Carlin vs. Reiser 30-2025-01454477	<u>Motion for Attorney’s Fees and Costs</u> Defendants Matthew Stein’s and Christina Yee’s Motion for Attorneys’ Fees and Costs re Defendants’ Anti-SLAPP Motion is GRANTED in part and DENIED in part. Plaintiff Gary R. Carlin is ORDERED to pay to Defendants Matthew Stein and Christina Yee attorney’s fees in the amount of \$17,770 and costs in the amount of \$60 within 30 days of receiving notice of this ruling. <u>Pending Motion</u>

		Defendants Matthew Stein and Christina Yee (Moving Defendants) move for an award of attorney's fees in the amount of \$19,270 and costs in the amount of \$2,889.08 against Plaintiff Gary R. Carlin pursuant to the Anti-SLAPP statute, Civil Procedure Code section 425.16, <i>et seq.</i> (Anti-SLAPP Statute). <u>Standard for Motion for Attorney's Fees</u> Generally, attorney's fees are borne by the party that incurred them. (See <i>Pederson v. Kennedy</i> (1982) 128 Cal.App.3d 976, 978-79). Therefore, a party may recover attorney's fees only if provided for by contract or statute. (See Code Civ. Proc., § 1033.5, subd. (a)(10); see also <i>LNSU # 1, LLC v. Alta Del Mar Coastal Collection Community Association</i> (2023) 94 Cal.App.5th 1050, 1081 ["Each party to an action must pay its own attorney fees unless a statute or contract requires the opposing party to pay them."].) For example, Civil Procedure Code section 425.16 states that "a prevailing defendant on a[n Anti-SLAPP] special motion to strike shall be entitled to recover that defendant's attorney's fees and costs." (Code Civ. Proc., § 425.16, subd. (c)(1).) Under this provision, "any SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees." (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131.) The purpose of the statute is "compensating the prevailing defendant for the undue burden of defending against litigation designed to chill the exercise of free speech and petition rights." (<i>Barry v. State Bar of California</i> (2017) 2 Cal.5th 318, 328.) <u>Prevailing Party</u> "The term 'prevailing defendant,' as used in section 425.16, subdivision (c)(1), is not defined, and it is unstated whether a defendant who prevails on some, but not all, of the claims challenged in his or her anti-SLAPP motion is entitled to fees and costs. (<i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 232.) "But as a general rule, a defendant who prevails in part in bringing a special motion to strike is entitled to fees and costs, subject to the trial court's determination of the appropriate amount awardable based upon the defendant's partial success." (<i>Ibid.</i>) Therefore, "a party need not succeed in striking every
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		challenged claim to be considered a prevailing party within the meaning of section 425.16." (<i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App.4th 328, 339.) Here, Moving Defendants were wholly successful with respect to their Special Motion to Strike as the court granted the motion in its entirety and as to each of the 8 Causes of Action of the Complaint. (See ROA #195.) Therefore, Moving Defendants were prevailing defendants entitled to an award of attorney's fees pursuant to Section 425.16. <u>Lodestar Calculation of Attorney's Fees</u> Normally, a court should use the lodestar method for calculating the amount of an award of attorney's fees, unless the statute authorizing attorney's fees provides for another method of calculation. (<i>Galbiso v. Orosi Pub. Util. Dist.</i> (2008) 167 Cal.App.4th 1063, 1089.) The Anti-SLAPP Statute does not provide another method of calculating reasonable attorney's fees so that the court may use the lodestar approach with respect to anti-SLAPP motions. (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at pp. 1135-1136.) When using this method, the court begins by determining the reasonable hours the prevailing party's attorney spent on the case and multiplying that number by the reasonable hourly rate. (See <i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at pp. 1131-34 or <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1131-1134; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1321.) However, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (<i>Ketchum vs. Moses, supra</i>, 24 Cal.4th at p. 1132.) Thus, the prevailing party "bear[s] the burden of . . . documenting the appropriate hours expended and hourly rates." (<i>Computer Xpress, Inc. v. Jackson, supra</i>, 93 Cal.App.4th at p. 1020, quoting <i>Hensley v. Eckerhart</i> (1983) 461 U.S. 424, 437.) However, once an attorney has presented evidence of her or his actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable. (<i>Mandel v. Lackner</i> (1979) 92 Cal.App.3d 747, 761; see <i>Horsford v Board of Trustees of California State University</i> (2005) 132 Cal.App.4th 359, 396 ["[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records
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		are erroneous."]; <i>Raining Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel are "sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel's detailed billing statements"].) "As the trial court 'is in the best position to value the services rendered by the attorneys in his or her courtroom,' we leave it in the trial court's discretion to determine the amount of reasonable attorney fees and costs to award . . . under the lodestar method." (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 622, quoting <i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 437; see also <i>Ketchum v. Moses</i>, <i>supra</i>, 24 Cal.4th at p. 1132 ["The trial judge is 'the best judge of the value of professional services rendered in his court.'"].) <u>Reasonable Hourly Rate</u> The reasonable hourly rate is based on the reasonable market value of the attorney's services. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1094-1095 or <i>PLCM Group, Inc. v. Drexler</i>, <i>supra</i>, 22 Cal.4th at p. 1094-1095.) This standard applies regardless of how much the attorney actually charged the client. (See <i>ibid.</i>) Thus, the same reasonable hourly rate will apply whether the attorney charged nothing for their services, charged below-market or discounted rates, represented the client on a contingent fee basis, or are in-house counsel paid a fixed salary. To determine the reasonable market value of the legal services provided, the court must look to the range of reasonable rates charged by and judicially awarded to comparable attorneys for comparable work. (See <i>Children's Hospital & Medical Center v. Bonta</i> (2002) 97 Cal.App.4th 740, 783; see also <i>PLCM Group v. Drexler</i>, <i>supra</i>, 22 Cal.4th at p. 1095 ["[The] reasonable hourly rate is that prevailing in the community for similar work."].) The party requesting fees has the initial burden of producing evidence sufficient to support the reasonableness of the billing rates requested. (See <i>Davis v. City of San Diego</i> (2003) 106 Cal.App.4th 893, 903.) If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See <i>Graciano v. Robinson Ford Sales, Inc.</i> (2006) 144 Cal.App.4th 140, 155 [finding court erred in reducing rates where evidence of reasonableness of rate
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		requested was undisputed].) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases." (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41, citations omitted; see also <i>Heritage Pacific Financial, LLC v. Monroy</i> (2013) 215 Cal.App.4th 972, 1009.) The value of legal services performed in a case is a matter of which the trial court has its own expertise. (<i>PLCM Group v. Drexler, supra</i>, 22 Cal.4th at p. 1096.) The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony. (<i>Ibid.</i>) "It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court." (<i>Melnyk v. Robledo</i> (1976) 64 Cal.App.3d 618, 623.) Here, Moving Defendants request an attorney's fees award based on hourly rates of \$800 for Counsel Rinat Klier Erlich and \$500 for Counsel Jenni M. Raphelt. (See Decl. of Rinat Klier Erlich, Esq. (Erlich Decl.), ¶ 12.) Moving Defendants have presented evidence of the reasonableness of these requested hourly rates given Counsel's experience and background. (See <i>id.</i>, ¶¶ 15, 12.) The court must assume that these rates are reasonable and the burden then shifts to Plaintiff to produce evidence to the contrary. While Plaintiff objects to these hour rates, Plaintiff provides no evidence in support of his arguments. The court finds that the hourly rates requested by Moving Defendants to be reasonable, based both on the evidence presented and the court's own knowledge and familiarity with the relevant legal market. <u>Hours Reasonably Expended</u> "[A]s the parties seeking fees and costs, defendants 'bear[] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' To that end, the court may require defendants to produce records sufficient to provide 'a proper basis for determining how much time was spent on particular
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claims.” (*ComputerXpress, Inc. v. Jackson, supra*, 93 Cal.App.4th at p. 1020, quoting *Hensley v. Eckerhart*, *supra*, 461 U.S. at p. 437, fn. 12.)

However, an attorney’s declaration, made under penalty of perjury, is sufficient to support an award of attorney’s fees under the Anti-SLAPP statute, even if the attorney did not submit billing records or invoices, particularly if the work described in the declaration was broken down by task, and generally could be verified by looking at the record. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 784-786; *Cruz v. Fusion Buffet, Inc.* (2020) 57 Cal.App.5th 221, 237-238.)

Further, once they are properly admitted, “the verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 396.)

Nonetheless “[a] trial court may not rubber stamp a request for attorney fees, but must determine the number of hours reasonably expended.” (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271-272.)

As the Court of Appeal has explained:

Although [] billing statements in support of a fee request form the “starting point” for determining the “hours reasonably expended” in a lodestar calculation, the trial court is not bound to accept these hours and may reduce them if it concludes the attorneys performed work unrelated to the anti-SLAPP motion, or represented work that was unnecessary or duplicative or excessive in light of the issues fairly presented.

(*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc., supra*, 6 Cal.App.5th at p. 441, quoting *Christian Research Institute v. Alnor, supra*, 165 Cal.App.4th at pp. 1324, 1326; see *Graham v. DaimlerChrysler Corp.* (2004) 34 Cal.4th 553, 579-580 [court need not include inefficient or duplicative efforts when awarding attorney’s fees].)

Thus, the defendant may recover fees and costs “only for the motion to strike, not the entire litigation.” (*Christian Research Inst. v. Alnor, supra*, 165 Cal.App.4th at p. 1320.)

As explained by the Court of Appeal:

[A] fee award under the anti-SLAPP statute may not include matters unrelated to the anti-SLAPP motion, such as 'attacking service of process, preparing and revising an answer to the complaint, [or] summary judgment research.' . . . Similarly, the fee award should not include fees for 'obtaining the docket at the inception of the case' or 'attending the trial court's mandatory case management conference' because such fees 'would have been incurred whether or not [the defendant] filed the motion to strike.' . . . In short, the award of fees is designed to 'reimburs[e] the prevailing defendant for expenses incurred in extracting herself from a baseless lawsuit' . . . rather than to reimburse the defendant for all expenses incurred in the baseless lawsuit.

(569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc., *supra*, 6 Cal.App.5th at p. 433, citations omitted.)

Here, Moving Defendants have submitted the declaration of their Counsel, who attests under penalty of perjury that the following amount of time was spent on the Special Motion to Strike:

Counsel Rinat Klier Erlich	
Description	Hours
Review the complaint, interview the client, and decide on strategy throughout the preparation of the anti-SLAPP motion	1.6
Review and finalize the anti-SLAPP motion and prepare for filing	0.5
Finalize and revise the instant fee motion	0.3
Total	2.4

Counsel Jennie M. Raphelt	
Description	Hours
Draft the anti-SLAPP motion	15.6
Draft the mootness brief in support of the anti-SLAPP motion	3.7
Review and analyze Plaintiff's opposition to anti-SLAPP	1.5
Draft the reply in support of the anti-SLAPP motion	2.1
Prepare for and attend hearings regarding the anti-SLAPP	6.2
Review/analysis of the attorney fees and drafting this motion	1.7
Summary/preparation of the breakdown	0.5

		Preparing the worksheet for the post-dismissal memorandum of costs	4.0
		Anticipated time to review the opposition, research and draft the reply brief for the instant fee motion, and prepare for and appear at the oral argument	3.0
		Total	38.3
		Plaintiff contends, in general terms, that the Moving Defendants' evidence lacks detail, and includes fees not yet incurred and fees for tasks not directly related to the Special Motion to Strike. However, Plaintiff fails to point to any specific time entries in support of his arguments. In challenges to the reasonableness of the number of hours billed, "it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence." (<i>Premier Med. Mgmt. Sys., Inc. v. Cal. Ins. Guarantee Ass'n</i> (2008) 163 Cal.App.4th 550, 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Ibid.</i>) Nonetheless, the court has reviewed the Moving Defendants' Counsel's declaration and finds that the following attorney's fees are not reasonable: • 2.0 hours of work performed (\$1,000) by Counsel Raphelt to prepare for and attend the hearing(s) regarding the Special Motion to Strike • 3.6 hours of work performed (\$1,800) by Counsel Raphelt to prepare the worksheet for the memorandum of costs; and • 1.0 hour of work performed (\$500) by Counsel Raphelt to review the opposition and draft the reply brief (as Moving Defendants only filed a short Notice of Non-Opposition rather than a Reply). The remainder of the attorney's fees requested by Moving Defendants are reasonable and should be included in the lodestar calculation. Therefore, the court will award reasonable attorney's fees in the amount of \$17,770 <u>Costs</u>	

		Generally, the prevailing party is entitled, as a matter of right, to recover costs in any action or proceeding. (See Code Civ. Proc., § 1032, subd. (b); <i>Foothill-De Anza Comm. College Dist. v. Emerich</i> (2007) 158 Cal.App.4th 11, 29-30.) Civil Procedure Code section 1033.5 enumerates the specific costs that are recoverable by the prevailing party in a civil action. (See Code Civ. Proc, §§ 1032, subd. (b), 1033.5.) Section 1033.5 also provides that the court may award costs not expressly described in the statute for expenses that are "reasonably necessary to the conduct of the litigation" and are "reasonable in amount." (Code Civ. Proc, § 1033.5, subd. (c)(2)-(4).) While the trial court has discretion to decide whether a cost item was reasonably necessary, the trial court does not have discretion to award a cost item that is not statutorily authorized. (See <i>Ladas v. California State Auto. Ass'n</i> (1993) 19 Cal.App.4th 761, 774.) To recover costs, the prevailing party must file and serve a memorandum of costs "within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first." (Cal. Rules of Court, rule 3.1700(a).) If the items on a memorandum of costs appear to be proper on their face, the verified memorandum of costs is <i>prima facie</i> evidence of their validity and the burden is on the party seeking to strike or tax costs to show they were not reasonable or necessary. (<i>Ladas v. California State Auto. Ass'n, supra</i>, 19 Cal.App.4th at p. 774.; see also <i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131 ["If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they are not reasonable or necessary."].) Here, Moving Defendants seek costs of \$2,889.08 for filing and motion fees. However, these costs do not appear to be proper on their face as Moving Defendants are entitled to costs related to the Special Motion to Strike and the filing fee for a motion is \$60,
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		In addition, Moving Defendants do not present any explanation or evidence in support of the their request for costs. Therefore, the court will award costs in the amount of \$60. Moving Defendants shall give notice of this ruling.
6	Sierra vs. General Motors LLC 30-2023-01325216	<u>Motion for Reconsideration</u> Defendant General Motors LLC's Motion to Reconsider and Set Aside the Court's February 9, 2026, Order Granting Plaintiff's Motion for An Order Awarding Attorneys' Fees, Costs, and Expenses is DENIED. <u>Pending Motion</u> Defendant General Motors LLC moves the court for reconsideration and to set aside its February 9, 2026 order granting Plaintiff Aaron John Serra's Motion for Attorney's Fees. <u>Standard for Reconsideration</u> Civil Procedure Code section 1008 states that: When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. (Civil Proc. Code, § 1008, subd. (a), italics added.) The motion for reconsideration must be made "within 10 days after service upon the party of written notice of entry of the order". (<i>Ibid.</i>) In addition, a party may only seek reconsideration "based upon new or different facts, circumstances, or law." (<i>Ibid.</i>) Thus, a court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (<i>Gilbert v. AC Transit</i> (1995) 32 Cal.App.4th 1494, 1499.) Here, the only new fact that Defendant offers is that Defendant's Counsel received the court's February 9, 2026 order after the order was already entered.